Filing # 217871780 E-Filed 03/02/2025 07:43:24 PM

IN THE SUPREME COURT OF FLORIDA

CASE NO. SC25-___

EDWARD THOMAS JAMES,

Petitioner,

v.

RICKY D. DIXON,

Secretary, Florida Department of Corrections,
Respondent.

PETITION FOR WRIT OF HABEAS CORPUS

EXECUTION SCHEDULED FOR
MARCH 20, 2025

Dawn Macready
Florida Bar No. 0542611
Capital Collateral Regional Counsel – North
1004 DeSoto Park Drive
Tallahassee, Florida 32301
(850) 487-0922
Dawn.Macready@ccrc-north.org

Counsel for Petitioner

TABLE OF CONTENTS

TABLE OF AUTHORITIES iii

JURISDICTIONAL STATEMENT 1

PRELIMINARY STATEMENT 1

REQUEST FOR ORAL ARGUMENT 2

STATEMENT OF THE CASE 3

GROUNDS FOR HABEAS CORPUS RELIEF 11

I. This Court should reconsider its prior timeliness rulings, which unjustly precluded Mr. James from receiving merits review of the myriad constitutional claims he raised in postconviction 11

A. This Court has recently recognized that the rule which allowed Mr. James to discharge his counsel is contrary to this Court's precedent and the aims of justice 12

B. Similarly situated individuals to Mr. James have been allowed to reinstate their postconviction proceedings 14

C. Newly disclosed brain scans shed new light on the invalidity of Mr. James' prior waivers and undermine the state courts' justifications for denying substantive postconviction review 19

D. Failure to revisit this Court's prior timeliness rulings would work a manifest injustice 22

CONCLUSION AND RELIEF SOUGHT 23

CERTIFICATE OF SERVICE 24

CERTIFICATE OF COMPLIANCE 24

TABLE OF AUTHORITIES

Cases

Asay v. State, 224 So. 3d 695 (Fla. 2017) 2

Davis v. State, 257 So. 3d 100 (Fla. 2018) 12, 13

Dist. Attorney's Office v. Osborne, 557 U.S. 52 (2009) 11

Durocher v. Singletary, 623 So. 2d 482 (Fla. 1993) 5, 6, 15, 16

Evitts v. Lucey, 469 U.S. 387 (1985) 11

Farr v. State, No. 91-0002-CF (Columbia Cty) 16, 17, 18, 19

Florida v. James, No. 1993-CF-3237 (Seminole Co., Feb. 23, 2025) ... 19-22

Hurst v. Florida, 577 U.S. 92 (2016) 7

In re Amendments to Florida Rules of Criminal Procedure 3.851 and Florida Rule of Appellate Procedure 9.142, 351 So. 3d 574 (Fla. 2022) 12, 13

James v. State, 695 So. 2d 1229 (Fla. 1997) 3, 4, 5

James v. State, 974 So. 2d 365 (Fla. 2008) 7

James v. State, 323 So. 3d 158 (Fla. 2021) 9

James v. State, 2021 WL 3855703 (Fla. Aug. 30, 2021) 9

James v. Florida, 522 U.S. 1000 (1997) 4

James v. Florida, 142 S. Ct. 1678 (2022) 10

James v. Sec'y, Fla. Dep't of Corrs., No. 6:18-cv-993 (M.D. Fla) 7

James v. Sec'y, Fla. Dep't of Corrs., No. 24-14162 (11th Cir.) 10

Muehleman v. State, 3 So. 3d 1149 (Fla. 2009) 1, 23

Pennsylvania v. Finley, 481 U.S. 551 (1987) 11

Rhines v. Weber, 544 U.S. 269 (2005) 7, 8

State v. Akins, 69 So. 3d 261 (Fla. 2011) 1, 23

Stephens v. State, 974 So. 2d 455 (Fla. 2d DCA 2008) 1

Trease v. State, 41 So. 3d 119 (Fla. 2010) 15, 19

Trease v. Sec'y, Dep't of Corrs. et al, No. 8:11-cv-233-SDM-TGW 15, 16

Procedural Rules

Fla. R. App. P. 9.030(a)(3) 1

Fla. R. App. P. 9.100(a) 1

Fla. R. App. P. 9.320 2

Fla. R. Crim. P. 3.851 ..... *passim*

Constitutional Provisions

Art. I, § 13, Fla. Const. 1

Art. V, § 3(b)(1) and § 3(b)(9), Fla. Const. 1

U.S. Const. amend. VI 2

U.S. Const. amend. VIII 2

U.S. Const. amend. XIV 2, 11

JURISDICTIONAL STATEMENT

Petitioner Edward Thomas James was sentenced to death on August 18, 1995. This petition presents issues which directly concern the constitutionality of his death sentences and is an original action under Fla. R. App. P. 9.100(a). This Court has original jurisdiction under Fla. R. App. P. 9.030(a)(3) and Art. V, § 3(b)(1) and § 3(b)(9), Fla. Const.

The Florida Constitution guarantees that "[t]he writ of habeas corpus shall be grantable of right, freely and without cost." Art. I, § 13, Fla. Const. Where a trial has resulted in "incongruous and manifestly unfair results," an appellate court has the "inherent authority to grant a writ of habeas corpus." *Stephens v. State*, 974 So. 2d 455, 457 (Fla. 2d DCA 2008).

PRELIMINARY STATEMENT

This Court has previously recognized that it has the "power to reconsider and correct erroneous rulings [made in earlier appeals] in exceptional circumstances and where reliance on the previous decision would result in manifest injustice." *State v. Akins*, 69 So. 3d 261, 268 (Fla. 2011) (quoting *Muehleman v. State*, 3 So. 3d 1149, 1165 (Fla. 2009)) (alteration in original).

Such exceptional circumstances are present here. Mr. James' death sentences are the byproduct of fundamental state and federal constitutional

errors, including violations of the Sixth, Eighth, and Fourteenth Amendments. But those multiple violations went uncorrected because of a now-defunct Florida rule that allowed Mr. James—now known to have been suffering from an insidious dementing process at the time of his postconviction waiver—to languish without counsel for over a decade. This rule, coupled with the state courts' arbitrary refusal to reinstate Mr. James' appeals despite allowing reinstatement for similarly situated individuals, permanently frustrated Mr. James' ability to obtain substantive review of his constitutional claims and violated his right to due process.

In light of the incongruous and manifestly unjust result that would ensue from Mr. James' execution under these circumstances, this Court has the authority to utilize its inherent equitable authority and grant a writ of habeas corpus.

REQUEST FOR ORAL ARGUMENT

Mr. James respectfully requests oral argument pursuant to Florida Rule of Appellate Procedure 9.320. The resolution of the issues involved in this action will determine whether Mr. James lives or dies. This Court has not hesitated to allow argument in other capital cases in a similar procedural posture. *See Asay v. State*, 224 So. 3d 695, 699 (Fla. 2017) (where this Court stayed Asay's execution after holding an oral argument). A full

opportunity to air the issues through oral argument is appropriate in this case because of the seriousness of the claims at issue and the ultimate penalty that the State seeks to impose on Mr. James.

STATEMENT OF THE CASE[1]

In 1995, Mr. James entered pleas of guilty to two counts of murder and related charges, and nolo contendere to two separately charged counts of capital sexual battery. *James v. State*, 695 So. 2d 1229, 1230 (Fla. 1997). Mr. James' memory of the events for which he was attempting to plead guilty was so poor that the State had to provide the factual basis for his plea (S. 368-75). Mr. James was informed that he would "never be able to withdraw the pleas of guilty and no contest ever again in [his] entire life." (S. 376-77).

[1] Citations in this petition are as follows: "R. __" refers to the first five volumes of the record on appeal for Mr. James' direct appeal to this Court (SC95-2312), and "S. __" refers to the supplemental record on appeal. "TT. __" refers to the separately paginated trial transcript in volumes six through eleven of the record on appeal. "PCR. __" refers to the four-volume record on appeal compiled for Mr. James' state postconviction appeal to this Court following his 2005 efforts to withdraw his 2003 postconviction waiver and discharge of counsel (which his counsel did not appeal at that time) (SC06-426). "2PCR. __" refers to the record on appeal following Mr. James' postconviction proceedings commencing in 2019. All other cited references will be self-explanatory or otherwise explained. This includes citations to Mr. James' under-warrant postconviction proceedings in the trial court, as he is required to file this petition prior to delivery of the record on appeal from those proceedings.

The plea did not include an agreement as to sentence, and the State sought death on both murder counts. *James*, 695 So. 2d at 1230.

A non-unanimous advisory jury recommended death sentences for the murder charges, which the trial judge imposed. *James*, 695 So. 2d at 1233. In so doing, the trial judge found three aggravating circumstances applicable to both counts, and determined they were sufficient for the death penalty and not outweighed by the mitigating circumstances.[2] The judge specifically rejected the statutory mitigator that Mr. James suffered from extreme emotional disturbance (R. 531-33).

This Court affirmed Mr. James' death sentences on direct appeal, *James*, 695 So. 2d at 1238, and the United States Supreme Court denied certiorari. *James v. Florida*, 522 U.S. 1000 (1997). Among other issues, his direct appeal challenged the trial court's rejection of the "extreme mental or emotional disturbance" ("EED") statutory aggravator due to an improper

[2] The three statutory aggravators were: (1) Mr. James was contemporaneously convicted of other capital and violent felonies; (2) the murders were committed in the course of commission or attempted commission of sexual battery; and (3) the murders were especially heinous, atrocious, or cruel (R. 525-31). The mitigating circumstances included the statutory mitigator that Mr. James' ability to appreciate the criminality of his conduct or conform his conduct to the requirements of law was substantially impaired due to drug and alcohol abuse (R. 533-35) and multiple nonstatutory mitigating circumstances (R. 535-41).

credibility evaluation of a key defense witness, and an improper and prejudicial prosecutorial argument urging Mr. James' jury to view his drug use as a nonstatutory aggravator. *See James*, 695 So. 2d at 1233, 1237.

In 1998, Mr. James' appointed counsel, the Office of the Capital Collateral Regional Counsel—Middle ("CCRC-M"), filed a state postconviction motion in the circuit court (PCR. 28-55). Amended motions were filed in 2001 and 2002 (PCR. 261-305, 359-411). Among other issues, Mr. James' postconviction motion raised the ineffectiveness of Mr. James' counsel for inexplicably abandoning a viable guilt-phase defense (PCR. 365); failing to advise Mr. James of the penalty phase ramifications of his pleas and allowing him to plead despite the lack of a factual basis (PCR. 365-70); failing to develop and provide retained mental health experts with critical evidence regarding Mr. James' mental illness and substance use (PCR. 370-73, 380-85, 388-93); failing to develop and provide retained experts with critical evidence rebutting the presence of statutory aggravators and establishing the presence of a statutory mitigator (PCR. 374-79, 385-86).

However, prior to an evidentiary hearing (PCR. 348-50), Mr. James moved *pro se* to withdraw his postconviction claims and discharge counsel (PCR. 473-74). After a hearing pursuant to *Durocher v. Singletary*, 623 So.

2d 482, 485 (Fla. 1993), the evidentiary hearing was cancelled, Mr. James' counsel was discharged, and his postconviction proceedings were dismissed (PCR. 493-95). The circuit court's order advised of a right to appeal the discharge and dismissal, which CCRC-M did not do (PCR. 495). The order also purported to advise Mr. James that the time for filing a federal petition could be affected by his dismissal of postconviction proceedings—however, the order misadvised Mr. James by providing inaccurate information about the deadline for federal review (PCR. 494).

In November 2005, Petitioner contacted his CCRC-M and informed them that he had reconsidered his decision to waive postconviction proceedings and wished to resume them (PCR. 505-06). CCRC-M moved for reappointment (PCR. 501-04). The circuit court appointed CCRC-M for the limited purpose of appearing at a hearing and filing a memorandum providing a legal basis for reinstating the collateral proceedings (PCR. 498-500, 508-16). On January 17, 2006, the court denied Mr. James' motion to reappoint CCRC-M and reinstate his proceedings, finding it time-barred (PCR. 498-500, 508-16, 523-26). This Court affirmed, ruling that Mr. James did not attack the validity of the prior waiver hearing, had been "explicitly warned…that he would be precluded from any further relief in the state courts by his waiver[,]" and "a mere change of mind is an insufficient basis for

setting aside a previous waiver." *James v. State*, 974 So. 2d 365, 366-67 (Fla. 2008).

Following this Court's decision, Mr. James was without counsel for the next ten years. However, because the 2005 appointment of counsel was limited, he was functionally deprived of counsel for the nearly 16 years from April 22, 2003, until February 11, 2019 (2PCR. 667). Although he attempted to alert this Court to his concern that his postconviction counsel had not properly handled his case at the time he discharged them, his ability to access the courts was again frustrated due to the ongoing lack of counsel (2PCR. 33-38).

In June 2018, the Capital Habeas Unit of the Federal Public Defender for the Northern District of Florida ("CHU") moved to be appointed as Mr. James' federal counsel in order to ascertain the status of his federal habeas rights and pursue federal remedies that might be available, including under the then-recent decision in *Hurst v. Florida*, 577 U.S. 92 (2016). *See James v. Sec'y, Fla. Dep't of Corrs.*, No. 6:18-cv-993 (M.D. Fla) (ECF No. 1). The federal court granted the motion and CHU counsel filed a federal habeas petition including several of the constitutional violations CCRC-M had alleged prior to Mr. James' postconviction waiver. *Id.* at ECF Nos. 13, 22, 23, 24, 25. A stay of the federal proceedings was entered, citing *Rhines v.*

Weber, 544 U.S. 269 (2005), and the Office of the Capital Collateral Regional Counsel—North ("CCRC-N") was appointed after CCRC-M certified a conflict (2PCR. 273-78).

CCRC-N filed a successive motion to vacate Mr. James' conviction and sentence under Fla. R. Crim. P. 3.851, raising claims that: (1) trial counsel was ineffective with regard to Mr. James' pleas and the penalty phase; (2) Mr. James was incompetent at the time of his pleas, various waivers, penalty phase, and sentencing; (3) Mr. James was incompetent at the time he waived his collateral proceedings; (4) Mr. James' death sentences violated *Hurst*; and (5) the combination of procedural and substantive errors prevented Mr. James from receiving fundamentally fair trial proceedings (2PCR. 279-414).

At a case management conference,[3] CCRC-N argued that it was improper to deem Mr. James' competency claims as time-barred because it was the duty of trial and collateral counsel to investigate and raise such

[3] The circuit court originally dismissed the proceedings without holding a case management conference as required by Fla. R. Crim. P. 3.851(f)(5)(B) (2PCR. 482-515). CCRC-N filed an unopposed motion for rehearing based on the court's failure to hold the case management conference, as well as a motion for disqualification of the presiding judge (2PCR. 517-53). The court denied the motion to disqualify, but granted rehearing and vacated the order dismissing the postconviction motion, stating that it would permit both parties to argue the timeliness of the motion (2PCR. 555-59).

claims rather than Mr. James himself (2PCR. 672-73). CCRC-N cited various examples evidencing trial and collateral counsel's ineffectiveness (2PCR. 673-82). The circuit court ultimately dismissed the motion as untimely, ruling that all of Mr. James' competency and ineffective assistance of counsel claims were untimely (2PCR. 571-604). The court based its dismissal on a determination that Mr. James had not given any legal justification for his delay in raising the claim that he was incompetent to waive his collateral proceedings (2PCR. 573). This Court affirmed, stating that Mr. James had failed to establish an exception to the time limitation in Fla. R. Crim. P. 3.851(d)(2). *James v. State*, 323 So. 3d 158, 160-61 (Fla. 2021).

CCRC-N filed a motion for rehearing, arguing that it addressed the timeliness issue at the circuit court case management conference and initial briefing. *See* Motion, *James v. Florida*, No. SC20-1036 (July 23, 2021). In both, CCRC-N explained that Mr. James cannot be faulted for failing to move to declare himself incompetent when it was the responsibility of trial and postconviction counsel to do so. *Id*. CCRC-N further argued that it could not have raised the issue of incompetency prior to its appointment in February 2019. *Id*. This Court denied rehearing, *James v. State*, 2021 WL 3855703 (Fla. Aug. 30, 2021), and the United States Supreme Court denied certiorari review on the issue of whether a court may refuse to review a capital

defendant's substantive incompetency claim. *James v. Florida*, 142 S. Ct. 1678 (2022).

Subsequently, the federal district court denied Mr. James' habeas petition as untimely and dismissed the case without reaching the merits of his constitutional claims. *James v. Sec'y, Fla. Dep't of Corrs.*, No. 6:18-cv-993 (M.D. Fla) (ECF No. 90). The Eleventh Circuit Court of Appeals denied a certificate of appealability. *James v. Sec'y, Fla. Dep't of Corrs.*, No. 24-14162 (11th Cir.) (ECF No. 9-1).

On February 18, 2025, Governor Ron DeSantis signed a warrant for Mr. James' execution, scheduled for March 20, 2025. Mr. James filed a postconviction motion in the trial court on February 23, 2025. *See* Successive 3.851 Motion, *Florida v. James*, No. 1993-CF-3237 (Seminole Co., Feb. 23, 2025). The trial court denied the motion on February 6, 2025. *Id*., Order (Feb. 26, 2025). Mr. James now files this petition for writ of habeas corpus together with his Notice of Appeal of the denial of his postconviction motion.

GROUNDS FOR HABEAS CORPUS RELIEF

I. This Court should reconsider its prior timeliness rulings, which unjustly precluded Mr. James from receiving merits review of the myriad constitutional claims he raised in postconviction.

Where a state provides for capital postconviction review, the Due Process Clause of the Fourteenth Amendment, which ensures fundamental fairness in litigation, applies to those proceedings. *See Dist. Attorney's Office v. Osborne*, 557 U.S. 52, 69 (2009). Although "due process does not 'dictat[e] the exact form such assistance must assume[,]" *id.* (quoting *Pennsylvania v. Finley*, 481 U.S. 551, 559 (1987)), postconviction relief procedures must "compor[t] with fundamental fairness[.]" *Finley*, 481 U.S. at 556; *see also Evitts v. Lucey*, 469 U.S. 387, 400-01 (1985) (where, as in providing postconviction review, "a State opts to act in a field where its action has significant discretionary elements," it must "act in accord with the dictates of the Constitution – and, in particular, in accord with the Due Process Clause").

Here, the ends of due process warrant reconsideration of this Court's rulings regarding the timeliness of Mr. James' ineffective assistance of counsel and competency claims for multiple reasons. First, this Court's timeliness rulings are largely the product of Mr. James' longstanding deprivation of counsel, which by this Court's own holding would never occur today. Second, the timeliness rulings are the product of inconsistent and

arbitrary state-court action regarding the treatment of postconviction waivers. And third, these timeliness rulings are inextricable from the substantive issue of Mr. James' incompetency, which has been further demonstrated by the recent disclosure of brain scans indicating a decades-long dementing process.

The combined effect of these circumstances is an extraordinary situation in which—absent this Court's intervention—there is no adequate state remedy to protect Mr. James' constitutional rights. This Court should exercise its inherent equitable authority and grant a writ of habeas corpus.

A. This Court has recently recognized that the rule which allowed Mr. James to discharge his counsel is contrary to this Court's precedent and the aims of justice.

In 2022, this Court recognized that the language of the rule which permitted Mr. James to discharge his counsel may be "inconsistent with this Court's case law[.]" *See In re Amendments to Florida Rules of Criminal Procedure 3.851 and Florida Rule of Appellate Procedure 9.142*, 351 So. 3d 574, 575 (Fla. 2022) (citing *Davis v. State*, 257 So. 3d 100, 107 n.8 (Fla. 2018)). In response, this Court, *sua sponte*, considered amending Fla. R. Crim. P. 3.851 (including prohibiting the discharge of postconviction counsel, even in cases of waiver) and ultimately amended the rules to reflect that "a capital defendant may waive pending postconviction proceedings **but not**

postconviction counsel, and that a subsequent postconviction motion is allowable to raise certain specified claims after a waiver of pending postconviction proceedings." *In re Amendments*, 351 So. 3d at 574 (emphasis added). This Court also amended Rule 9.142(d) by specifically removing any reference to the "discharge" or "discharging" of counsel.

In reaching this decision, this Court grappled with fundamental principles of death penalty jurisprudence the scope of postconviction waivers, and the importance of a capital defendant having counsel throughout all stages of a capital case. During oral argument, Chief Justice Canady stated:

> We started on this journey…with *Davis*. That raised some issues about the scope of a defendant's waiver of claims….One view is that…if you're going to waive proceedings, that's once and for all and forever. That's not the position the court took. We thought that was not what we wanted. The majority did not want that.

See 2/10/22 Oral Argument, *In re Amendments*, Case No. SC21-537, at 9:13-9:53. These expressed values contrast with the admonishments given and actions taken by the state courts in Mr. James' case.

Put simply, this Court has recognized that—notwithstanding a postconviction waiver—a death-sentenced individual must retain collateral counsel to protect his access to the courts and ability to avail himself of future claims. By today's standards, Mr. James would not have gone

unrepresented for any length of time, let alone years. But Mr. James was on his own for over a decade.

Justice requires that Mr. James not be faulted for his inability to access the court system during this time; nor can he be expected to have discovered newly available claims, conducted investigation, or litigated his own incompetency. This Court should exercise its inherent equitable power to revisit its prior timeliness rulings regarding Mr. James' postconviction claims; and, having done so, conduct a robust merits review of his previously-barred constitutional claims.

B. Similarly situated individuals to Mr. James have been allowed to reinstate their postconviction proceedings.

Declining to revisit this Court's prior timeliness rulings would work a manifest injustice and result in arbitrariness, because other death-sentenced individuals have been permitted to reobtain counsel and reinstate their postconviction proceedings after a simple change of mind.

For instance, Robert Trease, whose death sentence became final on November 15, 2000, successfully dismissed his collateral proceedings and counsel and had both reinstated after changing his mind at least three times.

First, Trease moved to dismiss counsel in March 2001 before the one-year statute of limitations for a postconviction motion had lapsed, prompting

counsel to file a shell motion for postconviction relief questioning his competency. *Trease v. State*, 41 So. 3d 119, 120-21 (Fla. 2010). After a hearing, Trease was determined competent, and his collateral proceedings were dismissed in May 2001 and his counsel discharged. *Id.* Approximately one year later in June 2002, Trease "changed his mind" and, at his request, the postconviction court reappointed counsel and reinstated the earlier postconviction motion in October 2002. *Id.*; *see also Trease v. Sec'y, Dep't of Corrs. et al*, No. 8:11-cv-233-SDM-TGW, ECF No. 26 at 1.

After a postconviction evidentiary hearing was held, but prior to issuance of a final order, Trease again moved to dismiss his collateral proceedings and counsel. The trial court informed Trease that it would not remove counsel until the postconviction motion was resolved. *Trease*, 41 So. 3d at 121. The court denied relief on Trease's postconviction motion in May 2007, then held a hearing on Trease's motion to waive before, again, dismissing Trease's collateral proceedings and counsel. *Id*.

In July 2007, state counsel appealed the denial of the postconviction motion. *Id.* Trease moved to discharge his counsel in the trial court, which was dismissed for a lack of jurisdiction. *Id*. Trease, again, moved to dismiss counsel and waive his appeals in May 2008—this time in this Court, which relinquished jurisdiction so that the trial court could conduct a *Durocher*

hearing. *Id*. Trease's motion was granted, and this Court affirmed the waivers after postconviction counsel appealed. *Id.* at 123.[4]

Similarly, Victor Farr, another death-sentenced Florida prisoner, repeatedly waived collateral proceedings and counsel and sought their reinstatement after changing his mind. After Farr's second resentencing proceeding, and before this Court affirmed his new death sentence, Farr moved to waive his collateral proceedings and dismiss counsel. *See Farr v. State*, No. 91-0002-CF, Waiver of Right to Seek Post-Conviction Relief (Third Judicial Circuit for Columbia County, Fla., Jan. 13, 1994). After a hearing, Farr's motion was granted and his collateral proceedings and counsel were discharged. *Id.*, Order (Oct. 17, 1996).

However, in April 1997, collateral counsel filed a postconviction motion on behalf of Farr despite his previous waiver. *Id.*, Motion to Vacate Judgments of Conviction and Sentence (Apr. 3, 1997). Farr then filed a second motion to waive his collateral proceedings and discharge counsel.

[4] Trease's federal habeas counsel filed an initial § 2254 petition on February 4, 2011. *Trease v. Sec'y, Dep't of Corrs. et al*, 2014 WL 4791996, at *2 (M.D. Fla. Sept. 24, 2014). After briefing on the petition's timeliness and gateway arguments, Trease "announced another change of mind" and moved to dismiss his counsel and petition. *Id.* The Middle District Court held that "[g]iven Trease's history of changing his mind, prudence commends not discharging counsel at this late date." *Id*.

Id., Form to Withdraw Counsel (Filed by Defendant) (Aug. 15, 1997). A second hearing was held, after which the trial court granted Farr's waiver and discharged collateral proceedings and counsel. *Id.*, Order (Oct. 3, 1997). In response to Farr's former collateral counsel, the Office of the Capital Collateral Representative ("CCR"), being abolished and replaced with the Office of the Capital Collateral Regional Counsel ("CCRC") CCR filed a Notice of Loss of Designated Counsel on behalf of Farr. *Id.*, Notice of Loss of Counsel (Oct. 23, 1997). CCRC then moved to appoint clemency counsel which was denied on the grounds that "[t]his trial court has concluded that Victor Marcus Farr does not desire representation by CCRC. However, the trial court further accepts the representation by CCRC that the trial court's Order in this regard is subject to review and is, in fact, under appellate review." *Id.*, Order Denying Motion to Appoint Clemency Counsel (Feb. 9, 1998). Due to Farr's waiver request, a third hearing was held to determine Farr's representation by collateral counsel in March 1999. In conducting the colloquy, the court informed Farr that he was able to change his mind at any time about whether he wished to waive his collateral proceedings and counsel:

> Q: The last time we were here, did you tell me you did or did not want collateral counsel?
> A: Yes, sir.

Q: What did you tell me?
A: I told you I didn't.
Q: All right. **And you understand you can change your mind at any time?**
A: Yes, sir.
Q: Have you changed your mind?
A: Yes, sir.
Q: And you would like collateral counsel?
A: Yes, sir.
Q: All right. They are appointed.

Id., Transcript of Proceedings (Mar. 29, 1999) at 207-08 (emphasis added).

After the hearing, the trial court entered an order appointing counsel due to Farr "having unequivocally stated that he desires representation by collateral counsel." *Id.*, Order Appointing Capital Collateral Regional Counsel to Represent Defendant (Mar. 29, 1999).

In Mr. James' case, this Court upheld the dismissal of his 3.851 proceedings on the grounds that his claims were untimely, he failed to satisfy an exception under Fla. R. Crim. P. 3.851(d), and the issue of his competency was resolved in a prior postconviction proceeding and was therefore procedurally defaulted. *James v. State*, 323 So. 3d 158, 160-61 (Fla. 2021). However, Mr. James—unlike Farr and Trease, who were both allowed to reinstate their collateral proceedings and counsel after repeatedly waiving and changing their minds—was denied the opportunity to reinstate his collateral proceedings and counsel after a single waiver, despite that

waiver resulting from his incompetency. This impacted Mr. James' ability to seek relief in both the state and federal courts.

Failure to revisit this Court's timeliness rulings—which directly resulted from the deprivation of counsel and failure to reinstate proceedings that is entirely at odds with the state courts' actions in *Farr* and *Trease*—would render Mr. James' execution arbitrary and capricious.

C. Newly disclosed brain scans shed new light on the invalidity of Mr. James' prior waivers and undermine the state courts' justifications for denying substantive postconviction review.

On January 11, 2023, Mr. James suffered near fatal cardiac arrest while incarcerated at Union Correctional Institution. He was found unresponsive in his cell and blue in color *See* Successive 3.851 Motion, *Florida v. James*, No. 1993-CF-3237 (Seminole Co., Feb. 23, 2025) at 9. It is unknown how long he had been unconscious and without oxygen before he was found. *Id.* He required several rounds of resuscitation in the prison before being transferred to UF Health Gainesville, including multiple rounds of shocks delivered via an automated external defibrillator and followed by compressions for more than twenty minutes, as well as intubation in the field *Id*. The compressions resulted in multiple rib fractures. Upon Mr. James' hospitalization, additional lifesaving measures were taken, including

continued intubation, therapeutic hypothermia, and the placement of a cardiac stent. *Id.* at 9-10. His lack of consciousness resulted in a loss of oxygen-saturated blood to his brain causing an acute encephalopathy, or brain injury. *Id.*

In addition to the loss of oxygen to his brain, medical staff noted that the comatose Mr. James had obtained an acute head injury. *Id.* Mr. James remained in a profound coma, with no immediate signs of neurological recovery, for two days before showing initial improvement. *Id.* at 13. During this time, a CT scan of his head and cervical spine was obtained to gauge the extent of Mr. James' altered mental state and encephalopathy, and to determine whether they resulted from presumably striking the back of his head when he fell during the cardiac event. Had Mr. James not suffered from a near-fatal medical catastrophe, he would never have been able to obtain such neuroimaging. After two years of his counsel's diligent efforts to obtain the scans, they were disclosed four days before the signing of Mr. James' execution warrant. *Id.* at 14-16.

Subsequent review by Dr. Erin Bigler, Ph.D., indicated evidence of "cerebral atrophy" in the frontoparietal realm, including significant space in which brain tissue should be present, but there is only cerebrospinal fluid. *See, e.g.*, *id.* at 11. At the time Mr. James' imaging was conducted—the day

of his cardiac arrest—cerebral atrophy due to anoxic brain injury (*i.e.*, the deprivation of oxygen Mr. James suffered before resuscitation) would not yet have shown up on a CT scan. *Id*. Thus, although the scans were responsive to Mr. James' cardiac arrest and subsequent head injury, the brain atrophy reflected "*predated [his] cardiac arrest, possibly by many years*" and reflects a "chronic brain condition" wherein the structural brain changes may have begun during his juvenile period. *Id.* at 11 (emphasis added); *see also id.* at 13.

This new information sheds critical light on the state courts' prior rulings, including the timeliness rulings that precluded substantive review of the competency claims and multiple ineffective assistance of counsel claims related to Mr. James' mental state and plea/waiver actions. As has been discovered in the years since Mr. James' last appeal to this Court, he suffers from a neurodegenerative disorder—inherently a progressive, dementing condition. *See id*. at 8, 14. And when this is taken into account with what was already known about Mr. James' substance abuse, life history, and mental health, it changes the picture of his case such that this Court's reconsideration is necessary. *See* Appendix to Successive 3.851 Motion, *Florida v. James*, No. 1993-CF-3237 (Seminole Co., Feb. 23, 2025) at 14 (any of Mr. James' previously known vulnerabilities "alone can increase the

risk of developing dementia later in life…but their combined presence significantly strengthens the correlation, suggesting a more substantial contribution to his cognitive decline."); *id.* (comparing Mr. James' brain to "a rusted engine that is suddenly pushed to his limits. The underlying structural weaknesses, previously stable but compromised, are now far more susceptible to rapid deterioration, causing the engine to fail much sooner than it otherwise would have.").

The new evidence demonstrates the extent of Mr. James' cognitive dysfunction—which is much greater than any court has recognized—and indicates that the degenerative/dementing process may have begun to take root close to 50 years ago. This, in turn, undermines all of this Court's postconviction rulings regarding timeliness and competency, and warrants reconsideration of those rulings.

D. Failure to revisit this Court's prior timeliness rulings would work a manifest injustice.

Since the time of this Court's prior rulings in Mr. James' case, this Court has recognized the problematic effect of the rule which allowed Mr. James to discharge his postconviction counsel and go without representation for many subsequent years. Also, since the time of those rulings, new information about Mr. James' longstanding dementia has rebutted many core

assumptions underlying the prior determinations of competency in his case. In the background, the state circuit courts have arbitrarily and inconsistently enforced purportedly competent postconviction waivers like the one Mr. James entered in 2003, and in Mr. James' case specifically, the state circuit court provided misinformation about the effects of such a waiver.

When these developments are viewed in tandem, the validity of Mr. James' trial-level pleas and waivers is undermined; his trial counsel's ineffectiveness in abandoning a viable guilt-phase defense and providing experts with comprehensive mitigation information takes on a greater significance; the trial court's improper rejection of the EED statutory mitigator is recast; and the vastness of Mr. James' impairments at the time of his postconviction waiver and discharge of counsel is especially stark. This Court's "reliance on [its] previous decision[s] would result in manifest injustice." *State v. Akins*, 69 So. 3d 261, 268 (Fla. 2011) (quoting *Muehleman v. State*, 3 So. 3d 1149, 1165 (Fla. 2009)). This Court should reconsider its prior timeliness rulings and allow for merits review of Mr. James' constitutional claims.

CONCLUSION AND RELIEF SOUGHT

This Court should grant Mr. James' petition for habeas corpus, stay his execution, and grant appropriate relief.

Respectfully submitted,

/s/ Dawn B. Macready
DAWN B. MACREADY
Florida Bar No. 0542611
Capital Collateral Regional Counsel – North
1004 DeSoto Park Drive
Tallahassee, Florida 32301
(850) 487-0922
Dawn.Macready@ccrc-north.org

Counsel for Petitioner

CERTIFICATION OF TYPE SIZE AND STYLE

This is to certify that the Petition for Writ of Habeas Corpus has been reproduced in a 14-point Arial type, a font that is not proportionately spaced.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing pleading has been furnished by electronic service to all counsel of record on this 2nd day of March 2025.

/s/ Dawn B. Macready
DAWN B. MACREADY